

Tamil Nadu Cultivating Tenants Protection and Payment of Fair Rent (Extension to Shencottah Taluk) Act, 1959

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State of Tamilnadu- Act

Tamil Nadu Cultivating Tenants Protection and Payment of Fair Rent (Extension to Shencottah Taluk) Act, 1959

TAMILNADU

India

Tamil Nadu Cultivating Tenants Protection and Payment of Fair Rent (Extension to Shencottah Taluk) Act, 1959

Act 28 of 1959

Published on 2 March 1960

Commenced on 2 March 1960

[This is the version of this document from 2 March 1960.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Cultivating Tenants Protection and Payment of Fair Rent (Extension to Shencottah Taluk) Act, 1959

(Tamil Nadu Act

28 of 1959

)

Statement of Objects and Reasons. - The system of land tenure and the systems of tenancy in Shencottah taluk of Tirunelveli district are the same as those in the rest of the Madras State. In view of the prevailing agrarian situation in Shencottah taluk, the Government consider that the cultivating tenants in that taluk should be given protection. They have accordingly decided to extend the Madras Cultivating Tenants Protection Act, 1955 and the Madras Cultivating Tenants (Payment of Fair Rent) Act, 1956, to that taluk. The Bill seeks to give effect to the above decision.

Published in Part IV-A of the Fort St. George Gazette, dated 11th November 1959.

Received the assent of the Governor on the 1960 and published in Fort St. George, dated the 2nd March 1960.

An Act to extend the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants Protection Act, 1955, and the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants (Payment of Fair Rent) Act, 1956, to the Shencottah taluk of the Tirunelveli district.

Whereas it is expedient to provide that the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants Protection Act, 1955 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXV of 1955), and the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants (Payment of Fair Rent) Act, 1956 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXIV of 1956), should be extended to, and by virtue of such extension should be in force in the Shencottah taluk of the Tirunelveli district;

BE it enacted in the Tenth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Cultivating Tenants Protection and Payment of Fair Rent (Extension to Shencottah Taluk) Act, 1959.

(2)

It shall come into force at once.

Note. - This Act was published in the Fort St. George Gazette on the 2nd March 1960 and hence this Act came into force on the said date.

2.

Extension of [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Acts XXV of 1955 and XXIV of 1956 to Shencottah taluk.

- The Tamil Nadu Cultivating Tenants Protection Act, 1955 (Tamil Nadu Act XXV of 1955), and the Tamil Nadu Cultivating Tenants (Payment of Fair Rent) Act, 1956 (Tamil Nadu Act XXIV of 1956), as in force immediately before the commencement of this Act (hereinafter referred to as the said Acts) are hereby extended to, and shall be in force, in the Shencottah taluk of the Tirunelveli district (hereinafter referred to as the said taluk).

3.

Repeal of corresponding laws.

- Any law corresponding to either of the said Acts in force in the said taluk immediately before the commencement of this Act (hereinafter referred to as the corresponding law) shall stand repealed on such commencement.

4.

Savings.

(1)

The repeal by section 3 of the corresponding law shall not affect,-

- (a) the previous operation of the corresponding law or anything done or duly suffered thereunder; or
- (b) any penalty, forfeiture or punishment incurred in respect of any offence committed against the corresponding law; or
- (c) any investigation, legal proceeding or remedy in respect of any such penalty, forfeiture or punishment as aforesaid;
- (d) and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(2) Subject to the provisions of sub-section (1), anything done or any action taken including any appointment or delegation made, notification, order, instruction or direction issued, rule, regulation or form framed, certificate granted or registration effected under the corresponding law shall be deemed to have been done or taken under the said Acts and shall continue in force accordingly, unless and until superseded by anything done or any action taken under the said Acts.

5.

Application of [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act I of 1891.

- Unless the context otherwise requires, the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

General Clauses Act, 1891 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act I of 1891), shall apply for the interpretation of the said Acts as extended to, and in force in, the said taluk.

6.

Powers of Courts and other authorities for the purposes of facilitating application of the said Acts.

- For the purpose of facilitating the application of the said Acts in the said taluk, any Court or other authority may construe the said Acts with such alterations not affecting the substance as may be necessary or proper to adopt them to the matter before the Court or other authority.

7.

Construction of references to laws not in force in the Shencottah taluk.

(1)

Any reference in the said Act to a law which is not in force in the said taluk shall, in relation to that taluk, be construed as a reference to the law, if any, in force in that taluk corresponding to the law referred to in the said Acts.

(2)

Any reference in any law which continues to be in force in the said taluk after the commencement of this Act to the corresponding law shall, in relation to that taluk, be construed as a reference to the said Acts.

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